

Strategic Analysis of Non-Criminal Pressure Levers in Polish Debt Recovery and Insolvency Enforcement

Introduction to Asymmetric Enforcement Mechanisms in Polish Commercial Law

The pursuit of a non-performing commercial obligation against a Polish sole proprietor (Jednoosobowa Działalność Gospodarcza, hereafter referred to as JDG) operating across international jurisdictions requires a deeply nuanced and multifaceted enforcement strategy. When standard civil litigation mechanisms, such as the Electronic Writ Proceedings (Elektroniczne Postępowanie Upominawcze, EPU), and traditional criminal fraud complaints stall or are rendered procedurally inefficient by the debtor's physical absence from the Republic of Poland, peripheral statutory levers must be engaged. The geographical arbitrage attempted by a debtor—maintaining a Polish registered entity while physically residing in a jurisdiction such as the Netherlands—often creates a false sense of impunity. However, Polish commercial, fiscal, and insolvency frameworks contain highly asymmetric pressure points that can be weaponized by a sophisticated creditor.

This comprehensive analysis evaluates the strategic utility of non-criminal pressure levers available under the Polish Bankruptcy Law (Prawo upadłościowe, hereafter "PU"), the Penal Fiscal Code (Kodeks karny skarbowy, hereafter "KKS"), and consumer protection frameworks as of mid-2026. The strategic objective is to compel the debtor—Mateusz Szklarski, operating a Kraków-registered JDG under the business name GPUcomputer—into prioritizing the settlement of a 155,000 PLN debt. This debt, stemming from an unfulfilled advance payment for a workstation, became mature and payable on March 31, 2026.

The debtor's evasive maneuvers, specifically an email communication falsely claiming to have filed for "bankruptcy protection" due to a supplier's collapse, juxtaposed against a pristine National Register of Debtors (Krajowy Rejestr Zadłużonych, KRZ) showing no such filings as of late May 2026, expose a critical vulnerability. This analysis systematically deconstructs how this discrepancy, alongside potential value-added tax (VAT) irregularities involving an unregistered secondary operator, can be utilized to generate overwhelming administrative, commercial, and fiscal pressure. The levers are subsequently ranked by their cost-to-impact ratio, accompanied by explicit warnings regarding strategic backfires that could inadvertently shield the debtor or permanently dilute the creditor's recovery prospects.

The Insolvency Dynamic: Statutory Duties, Presumptions, and Liability

To effectively leverage insolvency mechanisms against a JDG, it is imperative to deeply dissect the statutory definitions of insolvency under Polish law and the precise, unforgiving timelines governing the debtor's obligations. The Polish insolvency regime is designed primarily to

protect the broader economic market from the contagion of insolvent entities, placing severe positive obligations on the debtor the moment liquidity fails.

The Definition and Statutory Presumption of Insolvency

The foundational premise of any insolvency-based pressure strategy requires establishing that the debtor is, in fact, legally insolvent (*niewypłacalny*). Under Article 11, Section 1 of the Polish Bankruptcy Law (PU), a debtor is deemed insolvent when they lose the ability to execute their mature, pecuniary obligations. This is the liquidity test (*przesłanka płynnościowa*), which is the primary metric for all operating entities, particularly sole proprietors.

To assist creditors and courts in proving this often-opaque financial state, the Polish legislature introduced a powerful legal presumption in Article 11, Section 1a PU. This provision dictates that a definitive loss of ability to pay is legally presumed if the delay in executing mature financial obligations exceeds three months. It is crucial to mathematically analyze this timeline in the context of the specific debt in question. The 155,000 PLN obligation became definitively due on March 31, 2026. Therefore, the strict three-month threshold required to automatically trigger the statutory presumption of insolvency under Article 11, Section 1a PU will mathematically lapse on June 30, 2026.

However, the impending nature of this date does not preclude the debtor from currently being classified as insolvent under the general rule of Article 11, Section 1. The three-month rule is merely an evidentiary presumption designed to facilitate court proceedings; it is not a grace period or a safe harbor for the debtor. The debtor's own explicit written communication, citing the collapse of a Hong Kong supplier and stating an intent to seek "bankruptcy protection," serves as an unequivocal, extrajudicial admission of structural insolvency. By acknowledging the inability to refund the advance payment due to external supply chain failures, the debtor has factually conceded the state of cash-flow insolvency. This state materialized the moment the debtor recognized and communicated the inability to fulfill the obligation, long before the three-month statutory presumption period expires.

The Strict Obligation to File for Bankruptcy Protection

Once the state of insolvency crystallizes, the Polish Bankruptcy Law imposes a rigid, non-negotiable duty upon the entrepreneur. Under Article 21, Section 1 PU, a debtor is strictly obligated to formally file a bankruptcy petition with the competent commercial court no later than thirty days from the day the basis for declaring bankruptcy occurred.¹

Assuming the factual state of insolvency crystallized in early April 2026—following the supplier's collapse and the subsequent default on the refund—the thirty-day statutory window for the debtor to officially file a petition to be recorded in the National Register of Debtors (KRZ) expired in early May 2026. The independent verification that no bankruptcy or restructuring proceeding exists in the KRZ against the debtor or the JDG as of May 28, 2026, confirms a critical, actionable statutory breach. The debtor has unlawfully omitted a mandatory public law duty. This omission forms the bedrock for initiating severe administrative and civil sanctions, transitioning the debtor from a mere civil defaulter to a statutory violator.

Evaluating Civil Liability for Delayed Filing (Article 21)

Section 3 PU)

The Polish Bankruptcy Law provides specific civil remedies for creditors who suffer damages due to a debtor's failure to adhere to the thirty-day filing mandate. Article 21, Section 3 PU stipulates that individuals who are obligated by statute to file for bankruptcy, yet fail to do so within the prescribed timeframe, bear personal civil liability for the damage caused to creditors as a direct result of this delay.¹ A creditor theoretically possesses the right to file a distinct civil lawsuit under this provision to seek financial compensation.

Strategic Redundancy Against a Sole Proprietor (JDG)

While the mechanism of Article 21, Section 3 PU is highly effective and frequently utilized in corporate enforcement, its strategic application against a sole proprietor is fundamentally flawed and procedurally redundant. In the realm of corporate law, specifically regarding limited liability companies (*spółka z ograniczoną odpowiedzialnością*), this provision—often utilized in tandem with Article 299 of the Commercial Companies Code (*Kodeks spółek handlowych*, KSH)—is critical for piercing the corporate veil. It allows creditors to bypass the insulated corporate entity and hold the management board members personally liable with their private assets.⁴

However, the legal architecture of a *Jednoosobowa Działalność Gospodarcza* operates entirely differently. A JDG entrepreneur does not possess a separate corporate legal personality. Under the foundational principles of Polish civil law, codified in Article 33 of the Civil Code (*Kodeks cywilny*), the individual entrepreneur is already subject to absolute, unlimited, personal liability with their entire present and future global estate for all debts incurred in connection with the business.³ There is no corporate veil to pierce.

Consequently, initiating a separate, parallel civil lawsuit based on Article 21, Section 3 PU would merely yield a secondary enforcement title against the exact same individual and the exact same asset pool that the primary EPU claim already targets. The creditor would expend significant legal fees and time only to arrive at the identical execution endpoint. Furthermore, prosecuting a claim under Article 21, Section 3 PU is procedurally complex. The creditor bears the heavy evidentiary burden of proving an adequate causal link (*adekwatny związek przyczynowy*) between the specific delay in filing and the exact quantification of the depletion of the creditor's recovery prospects.³ Demonstrating that the creditor would have recovered more had the bankruptcy been filed in May rather than later is notoriously difficult in practice. Therefore, pursuing this specific civil lever represents a severe misallocation of legal resources, generating additional court fees and evidentiary burdens without expanding the executable asset pool.

The Court-Imposed Business Activity Ban (Article 373 PU)

While the civil liability avenue for delayed filing is tactically unsound against a JDG, the administrative and punitive sanction for the exact same omission—the court-imposed business activity ban (*zakaz prowadzenia działalności gospodarczej*)—stands out as one of the most

asymmetric, cost-effective, and potent pressure levers available within the Polish legal system.

Mechanism and Sweeping Scope of the Prohibition

Under Article 373, Section 1, Point 1 of the Polish Bankruptcy Law, the competent bankruptcy court possesses the authority to deprive an individual of the fundamental right to conduct business activity on their own account.⁷ Furthermore, this prohibition extends to stripping the individual of the right to serve as a member of a supervisory board, a management representative, or a commercial proxy (prokurent) in any commercial company, state enterprise, cooperative, foundation, or association.⁸ The court mandates this commercial exile for a highly punitive duration ranging from one to ten years.⁴

This severe sanction is explicitly triggered when a debtor, acting out of their own fault (wina), fails to submit a formal bankruptcy petition within the statutory thirty-day timeframe despite being objectively insolvent.⁷ The legislative intent behind this provision is not merely to punish the debtor, but to aggressively purge the economic market of financially irresponsible actors who pose a systemic risk to other participants through contagion and unpaid supply chains.

Creditor Legitimization and the Mechanics of the Procedure

A critical advantage of the Article 373 PU procedure is that a single creditor possesses independent, direct statutory standing to petition the insolvency court for this ban. This action operates entirely independent of, and parallel to, any ongoing civil (such as the EPU) or criminal enforcement tracks. The creditor does not need the permission of a prosecutor or a bailiff to initiate this devastating administrative strike.

The financial barrier to entry for this procedure is exceptionally low, making it an ideal weapon for asymmetrical legal warfare. The statutory court fee required to submit a petition to adjudicate a business activity ban is fixed at a mere 100 PLN, as explicitly defined by Article 76, Point 4 of the Act on Court Costs in Civil Cases (Ustawa o kosztach sądowych w sprawach cywilnych).¹⁰ For the price of a minor administrative fee, the creditor can compel the debtor to defend their entire professional livelihood in open court.

To succeed in this petition, the evidentiary burden rests entirely upon the applicant (the creditor).¹² The creditor must definitively demonstrate two primary elements to the satisfaction of the court. First, the objective element: the factual existence of the state of insolvency and the subsequent, mathematically provable lapse of the thirty-day filing deadline. Second, the subjective element: the presence of "fault" (wina) on the part of the debtor regarding the failure to file.⁹

Polish jurisprudence traditionally scrutinizes the subjective element closely, requiring proof that the failure was not due to an unavoidable accident or excusable ignorance.¹² In this specific scenario, however, the creditor is armed with exceptional evidence. The debtor's written email communication, in which they cite the Hong Kong supplier's collapse and make the demonstrably false claim of having already filed for "bankruptcy protection," serves as definitive, irrefutable proof of intentionality and acute awareness of their own insolvency. This documentary evidence effortlessly satisfies the burden of proof regarding fault, entirely negating any potential defense of administrative error, temporary liquidity misunderstanding, or

excusable ignorance. The debtor knew they were bankrupt and chose to deceive a creditor rather than fulfill their statutory duty to the state.

Regarding the timing of such an action, the creditor must be aware of the strict statute of limitations governing Article 373 PU. Following legislative amendments that took effect in 2016, Article 377 PU dictates that if a debtor completely fails to file a bankruptcy petition, a creditor has a three-year window to initiate the proceedings for a business activity ban.¹³ This three-year period commences from the exact day the debtor was legally obligated to file the petition.¹⁵ Given that the obligation likely crystallized in early May 2026, the creditor retains this highly potent strategic option until approximately May 2029, providing ample time to utilize the threat of the ban in settlement negotiations.

Professional Annihilation and Psychological Leverage

The adjudication of an Article 373 PU ban results in immediate and devastating consequences that extend far beyond the borders of Poland, striking directly at a debtor attempting to operate internationally. The most immediate domestic consequence is a mandatory, public entry into the National Register of Debtors (KRZ).

This entry acts as a mechanism of commercial exile. The debtor is forcibly and permanently struck from the Central Register and Information on Economic Activity (CEIDG), which governs sole proprietorships, and is systematically blocked from assuming any board positions within the National Court Register (KRS). For a debtor engaged in technology and hardware trading, losing the legal capacity to operate a business or represent a corporate entity effectively ends their career in the sector.

Crucially, the impact is not localized to Poland. Modern European financial institutions execute highly automated Anti-Money Laundering (AML) and Know Your Customer (KYC) compliance checks, which continuously scrape and cross-reference national insolvency and restricted-director registries across the European Union. A formal, court-ordered business ban in Poland will inevitably trigger severe compliance alerts across EU banking networks. This interconnected regulatory environment means that a Polish ban will highly likely result in the freezing, restriction, or outright closure of the debtor's corporate and personal bank accounts in their current jurisdiction of physical residence, the Netherlands.

The strategic value of this lever cannot be overstated. For a one-time capital outlay of 100 PLN¹¹, the creditor can credibly threaten the debtor with a decade-long commercial exile, the destruction of their corporate identity, and severe banking paralysis across the entire European economic area. This represents an exceptionally high return on investment regarding psychological coercion and commercial pressure, often forcing a heavily evasive debtor to the negotiating table to prevent the petition from being filed.

The Creditor's Bankruptcy Petition: The Perils of Forcing Insolvency

Initiating a formal bankruptcy proceeding (wniosek wierzyciela o ogłoszenie upadłości) against the debtor is another mechanism available to the creditor. While technically feasible and ostensibly aggressive, it is a path laden with profound legal hurdles, massive financial sinkholes,

and critical strategic risks that often backfire against the initiating party.

The Threshold Requirement: The Plurality of Creditors

Polish insolvency jurisprudence strictly differentiates between general execution (egzekucja uniwersalna), which is bankruptcy, and singular execution (egzekucja singularna), which is standard bailiff enforcement. A fundamental, non-negotiable tenet of commercial bankruptcy proceedings against an entrepreneur in Poland is the requirement for a "plurality of creditors" (stan wielości wierzycieli).¹⁶

The statutory rule is absolute: a commercial bankruptcy cannot be declared by the court if there is only a single unsatisfied creditor.¹⁶ The legal philosophy underlying this requirement is that bankruptcy is a collective procedure designed to distribute a limited pool of assets fairly among multiple competing claims; if only one entity is owed money, standard civil bailiff execution is the appropriate and exclusive remedy.¹⁶

From a strategic standpoint, while the user initiating this action may view themselves as a single creditor, the operational reality of a failing JDG provides a viable workaround. When a business halts operations, loses liquidity to the point of defaulting on a 155,000 PLN advance, and the proprietor physically relocates to another country, statutory public law liabilities accumulate instantaneously and invisibly. It is virtually guaranteed that the debtor is accruing mounting debts to the Social Insurance Institution (Zakład Ubezpieczeń Społecznych, ZUS) for unpaid mandatory health and social premiums, as well as accumulating obligations to the Tax Office (Urząd Skarbowy) for various unremitted taxes. The petitioning creditor can construct a valid, legally sound bankruptcy petition by arguing the highly probable, structural existence of these public law creditors, thereby satisfying the mandatory plurality requirement and forcing the court to examine the debtor's entire financial spectrum.¹⁶

The Prohibitive Financial Barrier to Entry

While the plurality requirement can be theoretically overcome, the financial cost of filing a creditor's petition acts as a massive deterrent. The Polish legal system structures these costs specifically to prevent frivolous or purely punitive bankruptcy filings and to ensure the court has the necessary initial capital to assess the debtor's estate and pay the preliminary insolvency practitioner.

Filing the petition requires two distinct financial outlays. First, a fixed statutory court fee of 1,000 PLN must accompany the application, as mandated by Article 74 of the Act on Court Costs in Civil Cases.¹⁸ Second, and vastly more expensive, is the mandatory advance on expenses (zaliczka). Under Article 22a of the Polish Bankruptcy Law, the petitioning creditor is legally required to deposit a financial advance to cover the costs of the preliminary proceedings, such as securing the debtor's assets and publishing announcements.⁶ The statute pegs this required zaliczka to exactly one time the average monthly wage in the enterprise sector (without profit-sharing bonuses) in the third quarter of the previous year, as officially declared by the President of the Central Statistical Office (GUS).⁶

To calculate the exact financial exposure for a petition filed in 2026, one must look to the GUS data for the third quarter of 2025. According to the official directive, the average wage for Q3

2025 stood at a substantial 8,851.42 PLN.²¹ Therefore, simply to file the bankruptcy petition and have a judge look at the documents, the creditor must deploy an upfront, non-refundable capital sum of precisely 9,851.42 PLN (the 1,000 PLN fixed fee plus the 8,851.42 PLN mandatory statutory advance).⁶

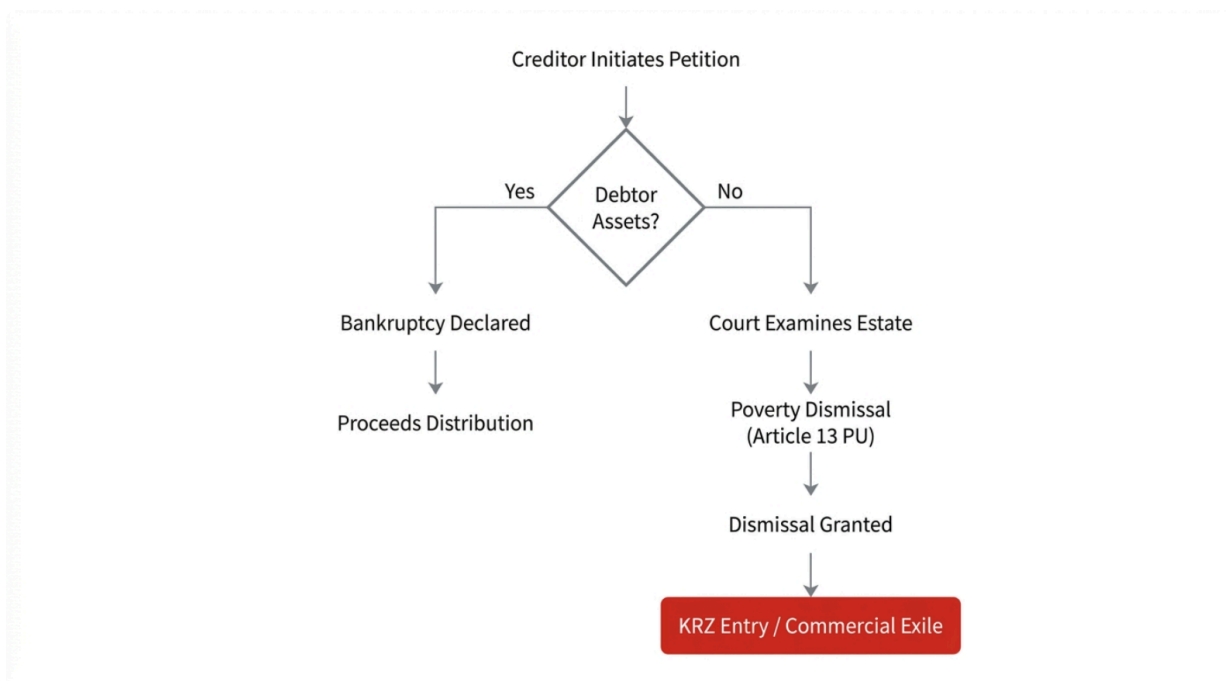
The "Poverty Dismissal" Paradox (Article 13 PU)

If the creditor chooses to absorb the near 10,000 PLN sunk cost and file the petition, they must immediately confront the likelihood of an Article 13 PU dismissal. Given the debtor's evasive behavior, relocation to the Netherlands, and probable lack of easily identifiable, unencumbered tangible assets in Poland, the commercial court is highly likely to dismiss the bankruptcy petition outright.

Article 13, Section 1 of the Bankruptcy Law contains a mandatory directive: the court shall obligatorily dismiss a petition for the declaration of bankruptcy if it determines that the estate of the insolvent debtor is insufficient to even cover the costs of the bankruptcy proceedings themselves (or if it suffices only for those administrative costs).¹⁷ The court will not initiate a multi-year liquidation process if there is no money to pay the trustee (syndyk).

Paradoxically, within the realm of aggressive debt collection, an Article 13 PU "Poverty Dismissal" is an immensely powerful pressure tool and a strategic victory, albeit an expensive one. Under Article 13, Section 5 PU, a dismissal based on poverty results in a mandatory, highly stigmatizing entry in the National Register of Debtors (KRZ).¹⁷ The court issues a formal, public decree stating that the debtor is not merely experiencing temporary cash-flow issues, but is fundamentally, structurally asset-less and totally insolvent. This permanent public record obliterates any remaining commercial credibility, destroys supply chain trust, and severs access to credit the debtor might possess across the entire European Union. It achieves maximum reputational destruction without requiring the creditor to fund a protracted, multi-year syndication and liquidation process.

The Strategic Anatomy of an Art. 13 PU Poverty Dismissal



While the court dismisses the bankruptcy petition due to insufficient estate assets, the statutory consequence is a mandatory, public declaration of total insolvency in the National Register of Debtors (KRZ).

The Fiscal Lever: Asymmetric Pressure via the National Revenue Administration

While bankruptcy mechanisms are fraught with costs and complexities, the most immediate, entirely zero-cost, and potentially devastating lever available to the creditor lies within the formidable jurisdiction of the National Revenue Administration (Krajowa Administracja Skarbowa, KAS). The specific fact pattern of this transaction—a massive 155,000 PLN advance payment for undelivered hardware, executed on the basis of a mere proforma document without clarity on the issuance of a final VAT invoice—creates catastrophic exposure for the debtor under the unforgiving framework of the Polish Penal Fiscal Code (Kodeks karny skarbowy, KKS).

The Mechanics of VAT on Advance Payments

To understand the leverage, one must dissect the mechanics of Polish taxation regarding unfulfilled transactions. Under Polish VAT regulations, specifically Article 19a, Section 8 of the Value Added Tax Act, the physical receipt of an advance payment (zaliczka) instantaneously triggers a mandatory tax point (obowiązek podatkowy) for the received amount. The law does not wait for the goods to be delivered; the movement of cash is the taxable event.

The entrepreneur is legally obligated to issue a formal advance VAT invoice (faktura zaliczkowa) to the buyer no later than the 15th day of the month following the month in which the funds were received. Subsequently, the entrepreneur must declare this transaction in their monthly JPK_V7 audit file and remit the corresponding VAT amount directly to the Urząd Skarbowy. If the debtor collected 155,000 PLN based solely on a non-accounting proforma document, failed to issue the proper statutory VAT invoice, and subsequently absorbed the cash without remitting the tax, they have transitioned from a civil debtor into an entity actively defrauding the State Treasury.

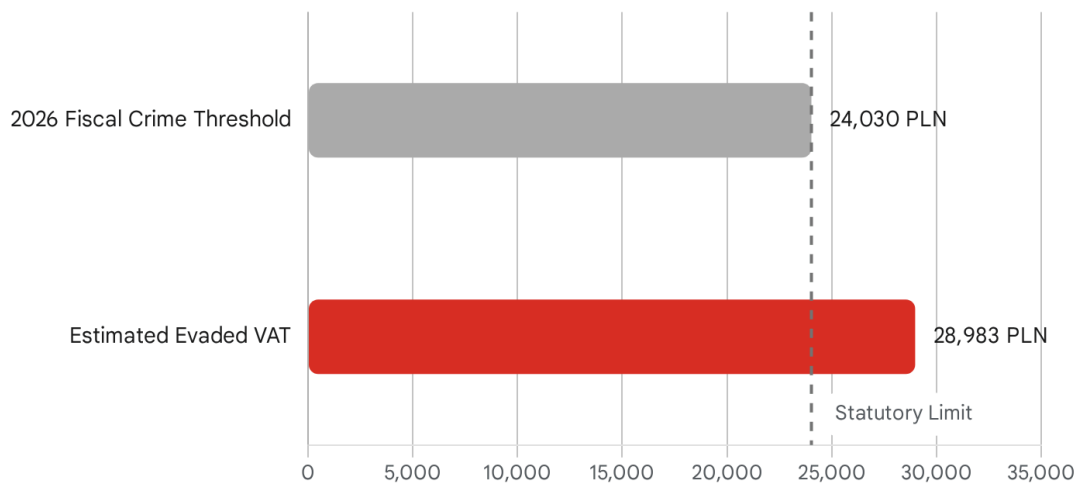
Assuming a standard Polish VAT rate of 23% applicable to electronics and high-end workstations, a gross payment of 155,000 PLN contains a massive embedded VAT liability. The calculation ($155,000 \text{ PLN} / 1.23 * 0.23$) reveals an evaded tax amount of approximately 28,983 PLN. This specific figure is the ammunition for the fiscal lever.

Escalation to Fiscal Crime (Article 62 KKS)

Article 62 of the Penal Fiscal Code (KKS) severely penalizes the failure to issue an invoice, the refusal to issue an invoice, or the issuance of a defective or unreliable invoice (faktura nierzetelna) that fails to reflect economic reality.²² However, the true terror of the KKS lies in how it categorizes the severity of the offense. The Polish legal system uses a dynamic threshold, pegged to the national statutory minimum wage, to dictate the boundary between a relatively minor fiscal misdemeanor (wykroczenie skarbowe), punishable by administrative fines, and a highly severe fiscal crime (przestępstwo skarbowe), punishable by massive financial penalties and potential incarceration.

As of January 1, 2026, the official minimum wage in Poland was raised to 4,806 PLN gross per month.²⁴ The KKS strictly defines the legal boundary separating a misdemeanor from a full-fledged crime as an amount of depleted public receivables exceeding five times the minimum wage. For the year 2026, this critical mathematical threshold is exactly 24,030 PLN.²⁴ This is where the creditor's leverage becomes exponential. Because the estimated evaded VAT on the workstation transaction (28,983 PLN) mathematically exceeds the 24,030 PLN statutory limit, the debtor's failure to account for this specific transaction crosses the Rubicon into the territory of a formalized fiscal crime.

2026 Penal Fiscal Code (KKS) Threshold Analysis



Because the estimated VAT embedded in the 155,000 PLN advance exceeds the 24,030 PLN statutory limit (5x the 2026 minimum wage of 4,806 PLN), the debtor faces potential prosecution for a fiscal crime under Art. 62 KKS.

Data sources: [GazetaPrawna.pl](https://gazeta.prawna.pl), [Gofin.pl](https://gofin.pl)

Standing, Procedure, and the Anomaly of the "Shadow Operator"

The creditor accurately notes that they hold no formal legal standing as an aggrieved party (pokrzywdzony) in a KKS proceeding. In all matters of fiscal penal law, the sole recognized victim is the State Treasury of the Republic of Poland. However, formal legal standing is entirely irrelevant to the deployment and efficacy of this lever.

The creditor possesses the right to submit an official whistleblower notification regarding the suspicion of a fiscal crime (zawiadomienie o podejrzeniu popełnienia przestępstwa skarbowego, colloquially referred to as a donos) to the competent regional Tax Office. This process is entirely free of charge, requires zero court fees, and can be executed without the need for formal legal representation.²⁶ Based on the JDG's publicly available NIP (Tax Identification Number: 8661681248) and the registered business address at Mogilska 16 in Kraków²⁷, the statutorily competent authority to receive this intelligence is likely the Urząd Skarbowy Kraków-Prądnik or Urząd Skarbowy Kraków-Śródmieście.²⁹ The notification must be meticulously documented, including the damning email correspondence, immutable banking proof of the 155k PLN wire transfer, and a copy of the non-compliant proforma invoice. Furthermore, the intelligence regarding the secondary operator, identified as "Waldek," who actively manages the business operations but is entirely absent from the VAT registry, acts as a

massive accelerant to the tax office's interest. To the analytical algorithms of KAS, an unregistered individual running high-value transactions strongly suggests an organized, structural effort to obscure cash flows, utilize unregistered intermediaries (słupy), and operate deeply within the shadow economy (szara strefa). Highlighting this specific operational anomaly in the whistleblower notification elevates the case from a routine missed invoice to a potential investigation into organized fiscal evasion. Tax authorities prioritize audits where there is evidence of structural, deliberate evasion rather than isolated administrative incompetence. The pressure generated by a formal KAS audit is unparalleled. Polish tax authorities possess draconian, extra-judicial powers, most notably the ability to utilize the STIR system (System Teleinformatyczny Izby Rozliczeniowej). Upon a reasonable suspicion of fiscal crimes designed to evade taxes, the head of the National Revenue Administration can utilize STIR to instantaneously and unilaterally freeze both corporate and associated personal bank accounts for up to 72 hours, which can then be extended for up to three months. This paralyzes the debtor's operational capacity entirely independent of the slow-moving civil court system.

The Consumer Protection Angle (UOKiK)

If the nature of the transaction—the purchase of a highly customized, 155,000 PLN workstation—can be argued to have been executed for personal, non-professional use (e.g., high-end personal computing, digital art, or gaming), the creditor technically qualifies as a protected consumer under the stringent definitions of Article 22(1) of the Polish Civil Code. While a single breached commercial transaction rarely triggers a systemic, nationwide intervention by the central Office of Competition and Consumer Protection (UOKiK)—an entity that focuses primarily on large-scale infringements of collective consumer interests—it does open a localized, highly frustrating avenue for bureaucratic harassment against the debtor. The creditor possesses the right to file a formal, detailed complaint with the local District or Municipal Consumer Ombudsman (Powiatowy lub Miejski Rzecznik Konsumentów) holding jurisdiction over the debtor's registered territory in Kraków. The power of the Ombudsman lies in statutory compulsion. Upon receiving a credible complaint, the Ombudsman is legally mandated to issue an official intervention letter, demanding comprehensive explanations and documentary evidence from the JDG regarding the failed transaction.

If the debtor, currently operating from the Netherlands, chooses to ignore this statutory request—a highly common tactic among evasive debtors attempting to ignore Polish correspondence—they immediately commit a distinct administrative offense. Under the strict provisions of Article 114 of the Act on Competition and Consumer Protection, the failure to provide required explanations to the Consumer Ombudsman, or the failure to address the Ombudsman's remarks, is an offense punishable by a mandatory minimum financial penalty of 2,000 PLN.³¹

It is important to note that the Supreme Court has clarified that the Ombudsman cannot act as a public prosecutor in a criminal court on behalf of the individual consumer in these specific matters.³² However, the primary utility of this mechanism is not direct debt recovery. Instead, it creates an entirely parallel, state-sponsored track of bureaucratic friction. It forces the debtor to expend time and resources answering local government inquiries, while simultaneously accumulating mounting state-level fines for non-compliance, all at absolutely zero financial

cost to the creditor.

Strategic Sequencing, Proportionality, and Backfire Mitigation

To maximize the probability of capital extraction and minimize the exposure to sunk legal costs, these non-criminal pressure levers must be sequenced with meticulous precision. Haphazard deployment, particularly regarding the initiation of bankruptcy proceedings, can actively and permanently harm the creditor's position, inadvertently providing the debtor with a state-sponsored escape route.

Phase 1: High Pressure, Zero Cost (Immediate Deployment)

The optimal opening salvo relies on mechanisms that require zero capital deployment but trigger overwhelming state responses.

The KAS Tax Audit Notification (Donos)

The paramount immediate action is filing a comprehensive whistleblower report to the competent Urząd Skarbowy in Kraków. This report must forensically detail the un-invoiced 155k advance, explicitly outline how the evaded VAT breaches the 2026 Article 62 KKS threshold for a fiscal crime, and spotlight the unregistered shadow operator ("Waldek") to trigger algorithms hunting shadow economy activity.

- **Strategic Ratio:** This offers maximum pressure for zero cost. It weaponizes the state's most powerful investigative and account-freezing (STIR) powers on the creditor's behalf.
- **Calculated Backfire Risk (Moderate):** There is a systemic risk inherent in awakening the tax authorities. If KAS successfully audits the debtor and issues a massive, punitive tax assessment for the evaded VAT and penalties, the State Treasury immediately becomes a super-priority creditor. If the debtor's remaining accessible assets are severely limited, the Tax Office will aggressively seize them first through rapid administrative execution, potentially leaving a depleted asset pool for the creditor's civil EPU claim. However, given that the debtor is currently evading payment entirely, this risk is tactically acceptable; the primary goal is to paralyze the debtor and force engagement, rather than strictly queuing for a share of non-existent liquid assets.

Consumer Ombudsman Intervention

Simultaneously, if the transaction can be framed within consumer parameters, a complaint should be filed with the Kraków Consumer Ombudsman.

- **Strategic Ratio:** High nuisance value for zero cost, creating continuous administrative friction and guaranteed minimum 2,000 PLN fines under Article 114 UOKiK for the debtor's inevitable non-response.
- **Calculated Backfire Risk:** None. This is a purely parallel administrative track that does not interfere with asset recovery.

Phase 2: High Pressure, Low Cost (Mid-Term Deployment)

If the immediate fiscal and administrative pressures do not yield a settlement, the strategy

must escalate to the destruction of the debtor's commercial identity.

Petition for Business Activity Ban (Article 373 PU)

The creditor must file a formal petition to the bankruptcy court in Kraków, meticulously documenting the debtor's objective insolvency, the intentional failure to file for bankruptcy within thirty days of the April 2026 insolvency date, and utilizing the debtor's own email as proof of fault.

- **Strategic Ratio:** Extremely High. For a nominal 100 PLN court fee, the creditor threatens to completely annihilate the debtor's commercial identity in Poland and trigger devastating banking compliance alerts (AML/KYC) across the European Union.
- **Calculated Backfire Risk (Low):** The only structural drawback is the notorious velocity of the Polish judiciary. It may take six to twelve months to secure an initial hearing, making this a slow-acting strategic poison rather than an immediate tactical shock.

Phase 3: The Nuclear Deterrent (Deploy with Extreme Caution)

The final lever is the most aggressive, yet paradoxically the most dangerous to the creditor's own interests.

The Creditor's Bankruptcy Petition

Filing a formal bankruptcy petition against the JDG, artificially satisfying the plurality requirement by citing the inevitable ZUS and Tax Office arrears, represents the nuclear option.

- **Strategic Ratio:** Exceptionally Low. It requires the creditor to sink nearly 10,000 PLN in non-refundable fees and advances into pursuing a debtor who is actively hiding assets in a foreign jurisdiction.
- **Calculated Backfire Risk (Critical and Systemic):** This is the most dangerous maneuver a creditor can execute without perfect intelligence on the debtor's asset profile. If the court actually accepts the petition and formally declares bankruptcy, the creditor's individual, agile EPU enforcement is immediately and permanently suspended by operation of law.

Furthermore, the creditor is forcibly dumped into Category III of the bankruptcy distribution estate. This means the creditor will only receive a single grosz after all exorbitant administrative costs of the syndyk (Category I) and all mounting state social security debts (Category II) are satisfied in full. In the vast majority of small JDG bankruptcies, Category III creditors receive absolutely zero.

The ultimate trap, however, is the discharge mechanism. Successfully forcing the debtor into bankruptcy provides them with the legal architecture to eventually apply for a debt discharge (oddłużenie) at the conclusion of the process. If granted, this legally and permanently wipes out the 155,000 PLN debt forever, turning the creditor's 10,000 PLN investment into the exact mechanism that legally absolves the debtor.

Cost-Impact Matrix of Non-Criminal Pressure Levers

Lever	Upfront Cost	Evidentiary Burden	Debtor Impact	Backfire Risk
KAS / Tax Audit (Donos do urzędu skarbowego)	-	Requires specific information contained in the report	Individual analysis and formal tax audit	No negative consequences or penalties if correctly settled
Art. 373 PU Business Ban (Zakaz prowadzenia działalności gospodarczej)	100 PLN (Fixed fee)	-	Ban on conducting business activity	-
Creditor's Bankruptcy Petition (Wniosek o ogłoszenie upadłości)	1,000 PLN (Fixed fee) + 8,851.42 PLN (per Art. 22a PU)	-	Declaration of bankruptcy	Dismissal of petition if debtor's assets do not cover costs or are heavily encumbered (mortgage/pledge)
UOKiK Consumer Notice	-	-	-	-

Comparison of enforcement levers demonstrating that the Urząd Skarbowy audit and the Art. 373 PU business ban provide the highest systemic pressure with the lowest financial exposure.

Data sources: [Podatnik.info](#), [Lexlege.pl](#), [Arslege.pl](#), [GUS - OpenLEX](#), [Prawo upadłościowe - LEX](#)

Pressure Lever	Upfront Cost	Evidentiary Burden	Impact on Debtor	Backfire Risk to Creditor
KAS / Tax Audit (Donos)	0 PLN	Low (Email evidence of unpaid advance)	Critical: Potential criminal fiscal charges (KKS), account freezes.	Moderate: State tax liens supersede commercial debts in execution priority.
Art. 373 PU	100 PLN	Medium (Proof	High: 1-10 year	Low: Zero

Business Ban		of insolvency and intentional fault)	commercial exile, automated banking compliance alerts.	financial risk; merely requires time for court scheduling.
Consumer Ombudsman Notice	0 PLN	Low (Proof of consumer status)	Low to Moderate: Bureaucratic harassment, fines for non-response.	None: A purely administrative parallel track.
Forced Bankruptcy Petition	> 9,850 PLN	High (Requires proving plurality of creditors)	Variable: Loss of asset control, mandatory KRZ entry.	Critical: High sunk costs; risks suspension of EPU and debt discharge.

A formal bankruptcy petition should only ever be filed if the creditor possesses concrete intelligence that the debtor holds significant, hidden, yet retrievable assets (such as recently transferred real estate) that a powerful court-appointed trustee can claw back using Paulian actions (Actio Pauliana). If the debtor is truly asset-less and operating through shadow proxies, the creditor is essentially paying 10,000 PLN to grant the fraudulent debtor a clean slate. The most optimal and destructive path forward bypasses the expensive machinery of formal bankruptcy entirely. The strategy must focus relentlessly on asymmetric warfare: immediately weaponizing the debtor's fiscal non-compliance via the KAS to trigger criminal thresholds, while simultaneously investing 100 PLN to initiate an Article 373 PU business ban, leveraging their own written admission of insolvency to secure a decade-long EU-wide commercial exile. This dual-track strategy maximizes systemic disruption and forces the debtor into capitulation, while entirely insulating the creditor from the immense sunk costs and discharge risks inherent in traditional bankruptcy proceedings.

Works cited

1. Art. 21. 1. Dłużnik jest obowiązany, nie później niż w terminie dwóch tygodni od dnia, w którym wystąpiła podstawa do ogłoszenia upadłości, zgłosić w sądzie wnioski o ogłoszenie upadłości.. Ustawa z dnia 28 lutego 2003 r. Prawo upadłościowe i naprawcze - przepisy.gofin.pl, accessed on June 3, 2026,

- <https://przepisy.gofin.pl/przepisy/1023.42228.0.0.20091021.2.0.html>
2. [Obowiązek dłużnika do złożenia wniosku o ogłoszenie upadłości] - Art. 21. - Prawo upadłościowe. - Dz.U.2025.614 t.j. - ustawy, accessed on June 3, 2026, <https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/prawo-upadlosciowe-17021464/art-21>
 3. odpowiedzialność za niezgłoszenie wniosku o upadłość w prawie upadłościowym (art. 21 ust. 3 p.u.), accessed on June 3, 2026, <https://www.adwokat-swiader.pl/profil-dzialalnosci/prawo-upadlosciowe/upadlosc-firmy/obowiazek-upadlosc/spoznione-zgloszenie-wniosku/>
 4. Sankcje za niezłożenie wniosku o upadłość przedsiębiorcy - KL Law Polska, accessed on June 3, 2026, <https://kancelaria-klaw.pl/blog-kl-law-polska/244-sankcje-niezlozenie-wniosku-u-padlosc>
 5. Analiza prawna odpowiedzialności po wykreśleniu spółki z o.o. z KRS bez likwidacji, accessed on June 3, 2026, <https://lexperts.pl/analiza-prawna-odpowiedzialnosc-po-wykresleniu-spolki-z-o-o-z-krs-bez-likwidacji/>
 6. [Zaliczka na wydatki w toku postępowania upadłościowego] - Art. 22a. - Prawo upadłościowe. - Dz.U.2025.614 t.j. - LEX, accessed on June 3, 2026, <https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/prawo-upadlosciowe-17021464/art-22-a>
 7. [Przesłanki orzeczenia zakazu prowadzenia działalności gospodarczej] - Art. 373. - Prawo upadłościowe. - Dz.U.2025.614 t.j. - ustawy, accessed on June 3, 2026, <https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/prawo-upadlosciowe-17021464/art-373>
 8. Treść orzeczenia VIII Ga 299/14 - Portal Orzeczeń Sądów Powszechnych, accessed on June 3, 2026, [https://orzeczenia.ms.gov.pl/content/\\$N/155515000004027_VIII_Ga_000299_2014_Uz_2015-01-15_001](https://orzeczenia.ms.gov.pl/content/$N/155515000004027_VIII_Ga_000299_2014_Uz_2015-01-15_001)
 9. Zakaz prowadzenia działalności gospodarczej, accessed on June 3, 2026, <https://annauznanska.pl/zakaz-prowadzenia-dzialalnosci-gospodarczej/>
 10. Dział 7. Wysokość opłat w postępowaniu upadłościowym, układowym i naprawczym - Ustawa o kosztach sądowych w sprawach cywilnych - koszt. sąd. - Lexlege, accessed on June 3, 2026, <https://lexlege.pl/ustawa-o-kosztach-sadowych-w-sprawach-cywilnych/dzial-7-wysokosc-oplat-w-postepowaniu-upadlosciowym-ukladowym-i-naprawczym/1085/>
 11. Zakaz działalności gospodarczej dla dłużnika - wzór wniosku - Progress, accessed on June 3, 2026, <https://e-progress.com.pl/zakaz-dzialalnosci-gospodarczej-dla-dluznika-wzor-w-wniosku/>
 12. Treść orzeczenia VI Ga 264/13 - Portal Orzeczeń Sądu Okręgowego w Rzeszowie, accessed on June 3, 2026, [https://orzeczenia.rzeszow.so.gov.pl/content/\\$N/154010000003027_VI_Ga_000264_2013_Uz_2014-06-17_001](https://orzeczenia.rzeszow.so.gov.pl/content/$N/154010000003027_VI_Ga_000264_2013_Uz_2014-06-17_001)

13. Sąd Najwyższy - POSTANOWIENIE, accessed on June 3, 2026,
<http://www.sn.pl/sites/orzecznictwo/Orzeczenia3/IV%20CSK%20177-18-1.pdf>
14. Kontrowersje wokół liczenia - terminu przedawnienia orzekania zakazu prowadzenia działalności gospodarczej - Zimmerman Sierakowski Frosztęga, accessed on June 3, 2026,
<https://www.zimmerman.com.pl/media/2015/11/Artyku%C5%82-Monitor-prawa-bankowego-BS-I-NF.pdf>
15. Art. 377. Nie orzeka się zakazu, o którym mowa w art. 373, jeżeli postępowanie w tej sprawie nie zostało wszczęte w terminie roku od dnia umorzenia lub zakończenia postępowania upadłościowego albo oddalenia wniosku o ogłoszenie upadłości na podstawie art. 13, a gdy wniosek o ogłoszenie upadłości nie był złożony, w terminie trzech lat od dnia, accessed on June 3, 2026,
<https://przepisy.gofin.pl/przepisy.6.29.169.1023.64664.20130330.art-377-ustawa-z-dnia-28022003-r-prawo-upadlosciowe-i.html>
16. Czy można ogłosić upadłość w przypadku jednego wierzyciela ..., accessed on June 3, 2026,
<https://www.zimmerman.com.pl/blog/upadlosc-w-przypadku-jednego-wierzyciela.html>
17. [Obligatoryjne oddalenie wniosku o ogłoszenie upadłości] - Art. 13. - Prawo upadłościowe. - Dz.U.2025.614 t.j. - ustawy, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/prawo-upadlosciowe-17021464/art-13>
18. Art. 74. koszt. sąd. - Opłata od wniosku o ogłoszenie upadłości, uznanie zagranicznego postępowania upadłościowego i zatwierdzenie układu - Ustawa o kosztach sądowych w sprawach cywilnych - ArsLege, accessed on June 3, 2026,
<https://arslege.pl/oplata-od-wniosku-o-ogloszenie-upadlosci-uznanie-zagranicznego-postepowania-upadlosciowego-i-zatwierdzenie-ukladu/k26/a8144/>
19. accessed on June 3, 2026,
<https://www.inforlex.pl/wersje-fragmentu/tresc.DZU.2025.251.0001228.-1.USTAWA-z-dnia-28-lipca-2005-r-o-kosztach-sadowych-w-sprawach-cywilnych.html?dok=4350252&rodzaj=29&nr=74>
20. Art. 74. koszt. sąd. - Ustawa o kosztach sądowych w sprawach cywilnych - Lexlege, accessed on June 3, 2026,
<https://lexlege.pl/ustawa-o-kosztach-sadowych-w-sprawach-cywilnych/art-74/>
21. Przeciętne miesięczne wynagrodzenie w sektorze przedsiębiorstw bez wypłat nagród z zysku w trzecim kwartale 2025 r. - ustawy, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzienniki-resortowe/przecietne-miesieczne-wynagrodzenie-w-sektorze-przedsiębiorstw-bez-38965708>
22. Art. 62 k.k.s. - Niewystawienie faktury, faktura nierzetelna lub wadliwa - adwokat marek dulniak, accessed on June 3, 2026,
<https://www.adwokatdulniak.pl/art-62-k-k-s-niewystawienie-faktury-faktura-nierzetelna-lub-wadliwa/>
23. Nierzetelne Faktury | Art. 62 KKS - Kancelaria Prawna Skarbiec, accessed on June 3, 2026,
<https://kancelaria-skarbiec.pl/prawo/prawo-karne-skarbowe-i-gospodarcze/zarz>

[uty-najczesciej-stawiane-przedsiębiorcom/niewystawienie-faktury-albo-rachunku-nierzetelne-faktury-art-62-kks/](https://www.gazetaprawna.pl/podatki/artykuly/10763333.wyzsze-kary-za-wykroczenia-i-przestepstwa-skarbowe-w-2026-r.html)

24. Od 1 stycznia 2026 r. wyższe kary za wykroczenia i przestępstwa skarbowe. Ważna kwota to 24 030 zł - GazetaPrawna.pl, accessed on June 3, 2026, <https://www.gazetaprawna.pl/podatki/artykuly/10763333.wyzsze-kary-za-wykroczenia-i-przestepstwa-skarbowe-w-2026-r.html>
25. Grzywna za wykroczenie skarbowe - Wskaźniki i Stawki - GOFIN.pl, accessed on June 3, 2026, <https://wskazniki.gofin.pl/wskaznik/330/grzywna-za-wykroczenie-skarbowe>
26. Donos do urzędu skarbowego – kompleksowy przewodnik - Podatnik.info, accessed on June 3, 2026, <https://www.podatnik.info/publikacje/donos-do-urzedu-skarbowego-kompleksowy-przewodnik.6616fe>
27. MATEUSZ SZKLARSKI GPUCOMPUTER - OnePlace - Marketplanet, accessed on June 3, 2026, <https://oneplace.marketplanet.pl/baza-firm/-/bc/company/61989/mateusz-szklarski-gpucomputer>
28. 8661681248 - NIP Mateusz Szklarski-Łopata Gpucomputer na mapach Targeo, accessed on June 3, 2026, <https://mapa.targeo.pl/8661681248/nip/firma>
29. Zasięg terytorialny - Urząd Skarbowy Kraków-Prądnik, accessed on June 3, 2026, <https://www.malopolskie.kas.gov.pl/urzed-skarbowy-krakow-pradnik/organizacja/zasieg-terytorialny>
30. Urząd Skarbowy Kraków-Śródmieście - Biuletyn Informacji Publicznej - Portal Gov.pl, accessed on June 3, 2026, <https://www.gov.pl/web/bip/urzed-skarbowy-krakow-srodmiescie-malopolskie-krakow-krakow>
31. Art. 114. - [Odpowiedzialność za nieudzielenie rzecznikowi konsumentów informacji i wyjaśnień lub nieustosunkowanie się do jego uwag i opinii] - Ochrona konkurencji i konsumentów. - ustawy, accessed on June 3, 2026, <https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/ochrona-konkurencji-i-konsumentow-17337528/art-114>
32. Rzecznik konsumentów nie stanie przed sądem jako oskarżyciel publiczny - rp.pl, accessed on June 3, 2026, <https://www.rp.pl/konsumenci/art13815111-rzecznik-konsumentow-nie-stanie-przed-sadem-jako-oskarzyciel-publiczny>